been 'received,' we must leave this great loose 'trust concept' at the Custom House, and must not for a moment suppose that a meagre *fideicommissum* will serve in its stead. Then we shall understand how vitally important to a nation—socially, politically, religiously important—its Theory of Corporations might be.

If it be our task legally to construct and maintain comfortable homes wherein organic groups can live and enjoy whatever 'liberty of association' the Prince will concede to them, a little, but only a little, can be done by means of the Romanist's co-ownership (*condominium*, *Miteigentum*) and the Romanist's partnership (*societas*, *Gesellschaft*). They are, so we are taught, intensely individualistic categories: even more individualistic than are the parallel categories of English law, for there is no 'jointness' (*Gesammthandtschaft*) in them. If then our Prince keeps the *universitas*, the corporate form, safe under lock and key, our task is that of building without mortar. But to keep the *universitas* safe under lock and key was just what the received theory enabled the Prince to do. His right to suppress *collegia illicita* was supplemented by the metaphysical doctrine that, from the very nature of the case, 'artificial personality' must needs be the creature of sovereign power. At this point a decisive word was said by Innocent IV. One outspoken legist reckoned as the fifty-ninth of the sixty-seven prerogatives of the Emperor that he, and only he, makes fictions: 'Solus princeps fingit quod in rei veritate non est[1].' Thus 'the Fiction Theory' leads us into what is known to our neighbours as 'the Concession Theory.' The corporation is, and must be, the creature of the State. Into its nostrils the State must breathe the breath of a fictitious life, for otherwise it would be no animated body but individualistic dust.

Long ago English lawyers received the Concession Theory from the canonists. Bred in the free fellowship of unchartered Inns, they were the very men to swallow it whole. Blackstone could even boast that the law of England went beyond 'the civil law' in its strict adhesion to this theory[2]; and he was right, for the civilians of his day generally admitted that, though in principle the State's consent to the erection of a corporation was absolutely necessary, still there were Roman texts which might be deemed

[1] Lucas de Penna, cited by Gierke, Genossenschaftsrecht, III. 371.

[2] Comment. I. 472.